



CHAPTER cxxiii.

An Act to confirm a Provisional Order under the Sea Fisheries Act 1868 relating to Oyster and Mussel Fisheries in the estuary of the River Yealm in the county of Devon. A.D. 1914.
[31st July 1914.]

WHEREAS the Board of Agriculture and Fisheries have made the Provisional Order set forth in the schedule hereto under the provisions of the Sea Fisheries Act 1868:

31 & 32 Vict.
c. 45.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as amended and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in
schedule
confirmed.

2. This Act may be cited as the Sea Fisheries (Yealm) Provisional Order Confirmation Act 1914. Short title.

[Ch. cxxiii.] *Sea Fisheries (Yealm) Provisional [4 & 5 GEO. 5.]*
Order Confirmation Act, 1914.

A.D. 1914.

S C H E D U L E.

YEALM FISHERY ORDER.

Order for conferring on Samuel Farmer Kingcome of Yealmpton Devonshire a right of Several Oyster and Mussel Fishery in the River Yealm or the estuary thereof in the county of Devon.

Grantees.

1. Samuel Farmer Kingcome of Yealmpton in the county of Devon his executors administrators and assigns (in this Order called "the Grantees") shall be the Grantees of the fishery mentioned in this Order.

Limits of fishery.

2. The following are the description and limits of the fishery (as shown on the plan sealed by the Board of Agriculture and Fisheries and marked "Yealm Fishery Order 1914") viz. all those parts of the bed or estuary of the River Yealm below low-water mark at ordinary neap tides situate within the several parishes of Newton Ferrers and Wembury in the county of Devon and bounded as follows that is to say (1) at the northern or upper limit thereof by an imaginary line across the said river or estuary drawn from a notice board situate on the foreshore of Newton Woods in the parish of Newton Ferrers at or near the point marked A on the above-mentioned plan to a notice board situate on the foreshore in the parish of Wembury at or near the point marked B on the said plan (2) at the southern or lower limit thereof by an imaginary line drawn across the said river or estuary from a point marked C on the said plan at or near Madge Point to a point marked D on the said plan at or near the northern extremity of Clitters Bay and (3) on all other sides of the said river or estuary between the above-mentioned lines by the line of low-water mark of ordinary neap tides.

Right to fishery.

3. This Order confers on the Grantees a right of several oyster and mussel fishery within the limits above mentioned.

Marking of limits and notice thereof.

4. The limits of the said fishery are marked out on the said plan and shall be further marked out as stated below or otherwise as the Board of Agriculture and Fisheries may from time to time direct.

Notice of limits.

5. In the event of the marks by the last-foregoing article prescribed being obliterated by storm or otherwise they shall be replaced by the Grantees and notice of the said limits and the mode of marking them may be given to fishermen dredgers and other persons as follows that is to say by advertisements in the local newspapers and by handbills posted at the Custom House at Plymouth and the coast-guard station at the Yealm Mothecombe and in and about the neighbourhood of the fishery.

[4 & 5 GEO. 5.] *Sea Fisheries (Yealm) Provisional* [Ch. cxxiii.]
Order Confirmation Act, 1914.

6. The upper or northern and the lower or southern limit of the fishery shall be marked by a post on each side of the river at or near the high-water mark of ordinary neap tides carrying a notice board having inscribed thereon in sufficiently large and legible letters a notice to the effect that such post and the one opposite thereto on the other side of the river estuary mark the upper or lower limit of the Yealm Oyster and Mussel Fishery extending from that point upwards or downwards (as the case may be).

A.D. 1914.
Marking of
upper and
lower bound-
aries.

7. No buildings erections embankments or other works shall at any time be commenced or executed within the limits above described without the previous consent in writing of the Board of Trade.

Works not to
be commenced
without assent
of Board of
Trade.

8. The Grantees shall render to the Board of Agriculture and Fisheries such accounts of their capital expenditure and income and of all oysters and mussels sold by them in such form and at such times as the said Board may require and shall allow the said Board or any person appointed by them to inspect the Fishery and all books and documents in their possession relating thereto and shall give to such Board or person all such information relating thereto as they or he may require.

Undertakers
to render
accounts &c.

9. Subject to the provisions of section 45 of the Sea Fisheries Act 1868 this Order shall continue in operation for sixty years from the date of its confirmation.

Duration of
Order.

10. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Grantees to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Crown
rights.

11. This Order may be cited as the Yealm Fishery Order 1914.

Short title.

Made by the Board of Agriculture and Fisheries under the Sea Fisheries Act 1868 this eighteenth day of May one thousand nine hundred and fourteen.

(L.S.)

SYDNEY OLIVIER
Secretary.

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